

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #03	CCRB Case #: 201510625	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 11/11/2015 4:45 PM	Location of Incident: East 8th Street and Avenue C	18 Mo. SOL 5/11/2017	Precinct: 09		
Date/Time CV Reported Thu, 12/17/2015 12:45 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/17/2015 12:45 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Harlyn Delossantos	02649	940058	PSA 4
2. DTS Geneva Anderson	1709	936130	PSA 4
3. POM William Carey	14531	917382	PSA 9
4. POF Stephanie Vacchio	31707	953511	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yatai Ng	15277	957899	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . POM William Carey	Discourtesy: PO William Carey spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM William Carey	Force: PO William Carey used physical force against § 87(2)(b)	B . Exonerated
C . POF Stephanie Vacchio	Force: PO Stephanie Vacchio used physical force against § 87(2)(b)	C . Exonerated
D . POM Harlyn Delossantos	Force: PO Harlyn Delossantos used physical force against § 87(2)(b)	D . Exonerated
E . DTS Geneva Anderson	Force: Det. Geneva Anderson used physical force against § 87(2)(b)	E . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On December 17, 2015, § 87(2)(b) filed this complaint with the CCRB via telephone.

On November 11, 2015 at 4:45 p.m., at East 8th Street and Avenue C in Manhattan, § 87(2)(b) was walking to work when he had a seizure and collapsed unconscious to the ground. Although § 87(2)(b) had no recollection of what happened after he collapsed, § 87(2)(b) recalled hearing a male officer, identified by the investigation as PO William Carey of PSA9 tell him, "Get to the fucking ground" (**Allegation A**). § 87(2)(b) stated the officers thought he was on drugs and were not aware he was having a seizure. The next thing § 87(2)(b) remembered was seeing the roof of the ambulance truck as he was en-route to § 87(2)(b), escorted by PO Yat Fai Ng of PSA4. § 87(2)(b) alleged he sustained bruises and cuts on his face and knees from the force used by officers, as well as damaged nerves on his wrists due to the handcuffs (**Allegations B, C, D, and E**). § 87(2)(b)'s wife § 87(2)(b) had been contacted and upon her arrival, § 87(2)(b) observed officers holding § 87(2)(b) who was lying face down and handcuffed, to the ground. After his seizure, § 87(2)(b) claimed he was kept in an induced coma for four days; § 87(2)(b) stated it was two to three days. § 87(2)(b) stated he was released from the hospital on § 87(2)(b); § 87(2)(b) stated § 87(2)(b) was released on § 87(2)(b), which his medical records confirm. § 87(2)(b) was not summonsed or arrested as a result of this incident. § 87(2)(g), § 87(4-b)

After family members and friends suggested § 87(2)(b) file a complaint, § 87(2)(b) contacted the CCRB thirty-six days after the incident occurred. As this complaint was filed late, video footage was not available.

Mediation, Civil and Criminal Conviction Histories

- Mediation was not offered as § 87(2)(b) finds his injuries were not minimal and to be his main complaint; § 87(2)(b) wants officers punished for causing his injuries [BR 01].
- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming he suffered severe physical injuries, severe emotional distress, mental trauma, anguish, shame, humiliation, indignity, physical injuries, and loss of liberty and is seeking \$2,000,000 compensatory damages and \$1,000,000 punitive damages as redress [BR 11].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 09].
- PO William Carey has been a member of the service for 19 years and this is the first CCRB complaint against him.
- PO Stephanie Vacchio has been a member of the service for 3 years and there are no substantiated CCRB allegations against her.
- PO Harlyn De Los Santos has been a member of the service for 10 years and this is the first CCRB complaint against him.
- Det. Geneva Anderson has been a member of the service for 11 years and this is the first CCRB complaint against her.

Potential Issues

- On January 7, 2016, § 87(2)(b) provided a telephone statement seemingly regarding this incident. But in her 911 call, § 87(2)(b) noted she was on East 6th Street and Avenue B when she observed a man wearing a hat and carrying a guitar case behaving strangely [NYPD 11]. The location and description of the individual differ from the incident location and § 87(2)(b).
- § 87(2)(b) did not recollect the incident and § 87(2)(b) arrived after the alleged discourtesy and physical force occurred.
- No officer noted the identification and contact information of civilian witnesses on scene.
- The investigation was unable to identify any independent civilian witnesses.
- Det. Anderson was not interviewed § 87(2)(g)

Finding and Recommendations

Recommendations

- **Allegation A: Discourtesy – PO William Carey spoke discourteously to § 87(2)(b)**
As § 87(2)(b) was walking to work along East 8th Street and Avenue, § 87(2)(b) felt unwell and leaned onto a pole [BR 01]. Immediately after that, § 87(2)(b) experienced a seizure and fell to the ground unconscious. When § 87(2)(b) regained consciousness, he heard a loud and clear male voice tell him to or three times, “Get to the ground! Get to the fucking ground!” § 87(2)(b) could not distinguish where the voice was coming from, did not know who it was, and could not tell the ethnicity of the person judging by his voice. § 87(2)(b) did not know if he was even on the ground or not at the time.

PO Vacchio explained that when § 87(2)(b) regained consciousness, he did not appear to be cognizant of his surroundings [BR 07]. After handcuffing § 87(2)(b) PO Vacchio stated § 87(2)(b) was still trying to run amok. PO Vacchio denied having issued § 87(2)(b) any orders to get to the ground and did not hear PO Carey do so. PO Vacchio did not hear PO Carey tell § 87(2)(b) to “get to the fucking ground.”

PO Carey issued § 87(2)(b) orders to get to the ground but could not confirm or deny if he made the alleged statement to § 87(2)(b) [BR 08]. PO Carey stated he did not remember what he said to § 87(2)(b) because it was a ‘hyped-up’ situation. PO Carey denied having used the word “fuck” or “fucking” in any context towards § 87(2)(b)

As PO De Los Santos approached PO Vacchio, PO Carey, and § 87(2)(b) from across the street, he observed PO Vacchio and PO Carey place § 87(2)(b) on the ground [BR 06]. Upon reaching them, PO De Los Santos stepped in to assist by holding down § 87(2)(b)’s legs. PO De Los Santos did not tell § 87(2)(b) to “get to the fucking ground,” and did not hear PO Carey do so.

§ 87(2)(g)

Consequently, it is recommended that **Allegation A** be closed as **unsubstantiated**.

- **Allegation B: Force – PO William Carey used physical force against § 87(2)(b)**
- **Allegation C: Force – PO Stephanie Vacchio used physical force against § 87(2)(b)**
- **Allegation D: Force – PO Harlyn De Los Santos used physical force against § 87(2)(b)**

• **Allegation E: Force – Det. Geneva Anderson used physical force against § 87(2)(b)**
§ 87(2)(b)

The next thing § 87(2)(b) remembered after being told to get to the ground was hearing the sirens of an ambulance and seeing the ceiling of the ambulance truck [BR 01]. In the hospital, § 87(2)(b) documented the injuries § 87(2)(b) sustained to his head, on both the left and right sides of his face, to both his knees, and his shoulders [BR 03]. § 87(2)(b) did not recall how the injuries were sustained. However, he claimed he landed on the left side of his face when he fell, and that the right side of his face was injured by PO Carey and PO Vacchio, which is based on § 87(2)(b)'s account of the incident as he had no recollection of seeing any officers. § 87(2)(b) narrated that when § 87(2)(b) arrived, he was face down on the ground with PO Carey and PO Vacchio holding him down; one officer was sitting on § 87(2)(b)'s legs while the other had their knee on § 87(2)(b)'s back.

§ 87(2)(b) had been notified by § 87(2)(b)'s sister § 87(2)(b) though text messages that § 87(2)(b) had collapsed. § 87(2)(b) explained that a passerby had § 87(2)(b)'s phone, and instructed § 87(2)(b) to call it. While § 87(2)(b) was on her way, a female officer called her phone to also inform her about § 87(2)(b). When § 87(2)(b) arrived, she observed § 87(2)(b) face down on the ground, handcuffed, and with his pants around his ankles. § 87(2)(b) observed numerous abrasions on § 87(2)(b)'s face but did not know how he sustained them. PO Carey was sitting with his buttocks on § 87(2)(b)'s legs while PO De Los Santos was kneeling beside § 87(2)(b) with his knee on § 87(2)(b)'s back. Det. Anderson approached § 87(2)(b) and handed § 87(2)(b) § 87(2)(b)'s cellphone. Det. Anderson told her she should not be worried, and that “it just looks bad.” Det. Anderson explained that a witness reported § 87(2)(b) thirty to forty-five minutes ago, and that officers had to restrain him because he had been removing his clothing and trying to bash his own head into the glass of a storefront window. § 87(2)(b) noted that § 87(2)(b) did not have on the jacket or sweater he was wearing when he left the house and that his t-shirt was ripped as well. § 87(2)(b) was informed that officers handcuffed § 87(2)(b) for their safety and his.

PO Vacchio stated she and PO Carey were at a red light when a Hispanic female flagged them down [BR 07]. PO Vacchio observed § 87(2)(b) with the left side of his face down on the ground and his hands still in his pockets as if he did not have a chance to remove his hands to break his fall. Upon approaching § 87(2)(b) PO Vacchio heard § 87(2)(b) snoring so she and PO Carey began to poke him and talk to him to try and wake him up. § 87(2)(b) was unresponsive. PO Vacchio observed a gash on the left side of § 87(2)(b)'s head and lip, which she presumed he sustained when he unexpectedly collapsed. When § 87(2)(b) stopped snoring, they checked his vitals again and called for EMS. When § 87(2)(b) began to wake up, he appeared disoriented and drugged. § 87(2)(b) took off his coat and balled it up into a ball to sleep on it. PO Vacchio tried to tell § 87(2)(b) he was not home. Then, § 87(2)(b) stood up and began to take his pants off. Again, PO Vacchio tried to tell § 87(2)(b) he was not home. PO Vacchio and PO Carey pulled § 87(2)(b)'s pants back up before he could reach for his boxers. PO Vacchio did not observe any injuries § 87(2)(b) may have sustained on his legs. They were able to pull his pants up so his bare legs were no longer exposed. The civilian who initially flagged them down assisted them by translating in Spanish in case § 87(2)(b) did not comprehend English. Then, § 87(2)(b) became violent – running in every direction as he flailed his arms and thrashed his head in every direction. PO Vacchio told § 87(2)(b) to put his hands behind his back so they could handcuff him for his safety. PO Vacchio further stated to § 87(2)(b) that they were there to help him and he was not under arrest. With one hand cuffed, § 87(2)(b) ran into the wall of a nearby storefront, pulling PO Vacchio and PO Carey with him as they each held onto one of his arms. PO Vacchio did not observe § 87(2)(b) strike his head

against the wall and denied having deliberately placed § 87(2)(b) against the wall. PO Vacchio and PO Carey were able to pull § 87(2)(b) away from the wall and handcuff his other arm while free-standing. As § 87(2)(b) refused to stand still, PO Vacchio and PO Carey leaned § 87(2)(b) towards her to bring him to the ground. § 87(2)(b) landed on the side of his body and was then rolled over to lie on his stomach. PO Vacchio denied any officer having tackled § 87(2)(b) to the ground. PO Vacchio held § 87(2)(b) down by his legs while PO Carey held § 87(2)(b)'s upper body. Then, PO De Los Santos and PO Anderson came from the PSA4 stationhouse across the street to assist them. Det. Anderson assisted PO Vacchio by holding § 87(2)(b)'s other leg while PO De Los Santos assisted PO Carey with holding § 87(2)(b)'s torso. As § 87(2)(b) continued to kick his legs, they told § 87(2)(b) they were there to help and asked him to calm down. PO Vacchio did not observe § 87(2)(b) sustain any additional injuries in her presence. PO Vacchio did not observe § 87(2)(b) experience a seizure while in her presence and was unaware § 87(2)(b) was a seizure risk until § 87(2)(b) informed her.

§ 87(2)(g) When PO Carey first approached § 87(2)(b) who was faced down on the ground with his hands in his pockets, he had minor abrasions to his face. After they woke § 87(2)(b) up, § 87(2)(b) became violent, and pulled PO Carey and PO Vacchio around on the sidewalk. § 87(2)(b) ran into the wall of a nearby storefront and then into a tree on the sidewalk. PO Carey denied having pushed § 87(2)(b) into the wall of the building or the tree. Once handcuffed, § 87(2)(b) did not calm down. While PO Carey and PO Vacchio were still holding § 87(2)(b) by his arms – PO Carey held § 87(2)(b) with one hand on the chain of the handcuffs and another on § 87(2)(b)'s upper body – PO Carey stuck his foot out to trip § 87(2)(b) over it and led § 87(2)(b) to the ground. § 87(2)(b) landed on the side of his body. PO Carey gave orders to § 87(2)(b) to relax and calm down, and to get to the ground. However, § 87(2)(b) appeared to be not verbal and did not comprehend what was being said to him. PO Carey denied having tackled § 87(2)(b) to the ground and did not observe him sustain any additional injuries while in his presence; he did not observe any injuries on § 87(2)(b)'s legs.

When PO De Los Santos exited the PSA4 stationhouse, he observed from across the street, PO Carey and PO Vacchio holding § 87(2)(b) by the arms and ordering him to stop resisting. However, § 87(2)(b) did not respond and was thrashing his head and limbs around, trying to head-butt and kick the officers off of him. When PO De Los Santos approached them, he noticed § 87(2)(b) was bleeding from his head and his coat on the ground nearby. PO Vacchio and PO Carey pushed § 87(2)(b) down to the ground for § 87(2)(b)'s safety. Once § 87(2)(b) was on the ground, PO De Los Santos stepped in to assist by holding down § 87(2)(b)'s legs. While waiting for EMS, § 87(2)(b) attempted to bang his head against the concrete and was successful in doing so at least once until officers placed his jacket under his face.

PO Ng noted in § 87(2)(b)'s AIDED report that he suffered a seizure at which point he fell face first onto the pavement, sustaining a laceration and bruises to the left side of his face and left leg [NYPD 02]. § 87(2)(b) was subsequently removed to § 87(2)(b).

§ 87(2)(a) PHL § 18(6)

Section 216-05 of the Patrol Guide instructs officers to use physical force to the extent necessary to restrain the subject until delivered to a hospital or detention facility [BR 12].

§ 87(2)(g)

§ 87(2)(g)

- § 87(4-b), § 87(2)(g)

Squad: 3

Investigator: _____ Rebecca Ho 02/12/2016
Signature Print Date

Supervisor: _____

Title/Signature	Print	Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature	Print	Date
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